

Date Of Decision: 08.08.2024 vs Deepika Kumari on 8 August, 2024

Author: Sandeep Sharma

Bench: Sandeep Sharma

2024:HHC:66

IN THE HIGH COURT OF HIMACHAL PRADESH, SHIMLA

Cr. Revision No.634 of 2023
Date of Decision: 08.08.2024

Rajneesh Kumar

Versus

.....Petitioner

Deepika Kumari

.....Respondent

Coram

Hon'ble Mr. Justice Sandeep Sharma, Judge.

Whether approved for reporting?

For the Petitioner: Mr. Aman Parth Sharma, Advocate.

For the Respondent: Mr. Prashant Sharma, Advocate.

Sandeep Sharma, J. (Oral)

By way of instant petition filed under Section 19(4) of the Family Courts Act, 1984, read with Section 397/401 of Cr.P.C., challenge has been laid to the order dated 09.06.2023, passed in Cr.MA No.89-4/21, filed under Section 125 Cr.P.C., whereby learned Principal Judge, Family Court,

Ghumarwin, District Bilaspur, Himachal Pradesh, proceeded to award interim maintenance in favour of respondent (petitioner herein), to the tune of Rs.11,000/- per month.

2. Before matter could be heard and decided on its own merits, learned counsel representing the parties stated before this Court that having regard to the nature of dispute and relationship inter se parties, an attempt can be made towards amicable settlement. Accordingly, vide order 2024:HHC:6672 dated 19.06.2024, this Court directed both the parties to come present on 17.07.2024. On 17.07.2024, parties though agreed to settle their dispute .

amicably inter se them, but matter was adjourned to 06.08.2024, enabling respondent-Ms. Deepika Kumari to consult her parents. Today, both the parties have again come present. Respondent-Ms. Deepika Kumari has come present along with her parents.

3. Though, initially attempt was made to persuade parties to live together, however, that does not appear to be possible. Though petitioner is ready and willing to take respondent back, but respondent-wife is not ready and willing to join her company. During proceedings of the case, both the parties have decided to settle their dispute amicably inter se them, whereby they have agreed to file joint petition under Section 13-B of the Hindu Marriage Act in the competent Court of law, praying therein for dissolution of their marriage by way of mutual divorce.

4. As per agreement, petitioner/husband shall be paying Rs.9,00,000/- towards permanent alimony to the respondent, but such amount would include amount of Rs.1,60,000/- already paid by him towards maintenance. Amount of alimony proposed to be paid, as detailed hereinabove, has been agreed to be received by the respondent graciously.

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5. Both the parties present in Court state on oath that they of their own volition and without there being any external pressure have .

entered into compromise, whereby they resolved to settle their dispute amicably inter se them. They state that since they have decided to part ways, they shall be filing joint petition under Section 13-B of the Hindu Marriage Act in the learned Family Court within a period of one week. They state that amount of Rs.9,00,000/-, agreed to be paid by the petitioner as alimony, shall be paid in two installments, but that would also include sum of Rs.1,60,000/-, already received by the respondent/complainant towards maintenance. They state that first installment of Rs.3,70,000/- shall be paid at the time of filing of joint petition under Section 13-B of the Hindu Marriage Act and second installment of Rs.3,70,000/- shall be paid at the time of recording statement of second motion. In view of aforesaid agreement arrived inter se parties, they shall have no claim of any kind against each other and all the Court cases, if any, filed by them against each other, shall be withdrawn immediately. They further state that in case they fail to abide by the compromise, as detailed hereinabove, they shall render themselves liable for penal consequences as well as contempt of Court. Their joint statement made on oath is taken on record.

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6. Having taken note of aforesaid compromise, which further stands substantiated with the recording of statement by both the parties .

recorded on oath, this Court is of the view that nothing remains to be adjudicated in the present proceeding and accordingly same can be disposed of with the direction to both petitioner as well as respondent to file joint petition under Section 13-B of the Hindu Marriage Act within a period of one week, before the competent Court of law. Ordered accordingly.

7. Needless to say, Court concerned while considering the prayer made on behalf of the parties under Section 13-B of the Hindu Marriage Act, would not insist for 'cooling period' especially when there is no possibility of rapprochement and marriage inter se them has broken beyond repair. This Court taking note of various judgments of Hon'ble Apex court has repeatedly held that there is no requirement of 'cooling period' of six months in the cases where marriage has broken beyond repair and there is no possibility of parties living together. Reliance in this regard is placed upon judgment rendered by this Court in Bharti Kapoor v . Des Raj, CMPMO No. 271 of 2017, decided on 31.10.2018, wherein it has been held as under:

8. Accordingly, for the reasons and circumstances narrated herein above, present petition is ordered to be converted into a petition under Section 13B of Hindu Marriage Act. Since both the parties are living separately for the last many years and they have been litigating with each other, statutory period of 2024:HHC:6672 six months as envisaged under Section 13B of the Act for grant of divorce by way of mutual consent, can be waived, especially when there is no possibility of rapprochement of the parties and marriage has broken beyond repair. In this regard, it would be apt to take note of the judgment rendered by the Hon'ble .

Apex Court in Veena vs. State (Government of NCT of Delhi) and another, (2011)14 SCC 614, wherein the Hon'ble Apex Court has held as under:

12." We have heard the learned counsel for the parties and talked to the parties. The appellant has filed a divorce petition under Section 13(1)(a) of the Hindu Marriage Act, 1955, being HMA No.397/2008 which is pending before the Court of Sanjeev Mattu, Additional District Judge, Karkardooma Courts, Delhi. In the peculiar facts and circumstances of this case, we deem it appropriate to transfer the said divorce petition to this Court and take the same on Board. The said petition is converted into one under Section 13B of the Hindu Marriage Act and we grant divorce to the parties by mutual consent."

9. Reliance is also placed on a judgment rendered by Hon'ble Apex Court in Priyanka Khanna v. Amit Khanna, (2011) 15 SCC 612, wherein Hon'ble Apex Court has held as under:-

"7. We also see form the trend of the litigations pending between the parties that the relationship between the couple has broken down in a very nasty manner and there is

absolutely no possibility of a rapprochement between them even if the matter was to be adjourned for a period of six months as stipulated under Section 13-B of the Hindu Marriage Act. 8. We also see from the record that the first litigation had been filed by the respondent husband on 2.6.2006 and a petition for divorce had also been filed by him in the year, 2007. We therefore, feel that it would be in the interest of justice that the period of six months should be waived in view of the above facts."

10. In the instant case also, statutory period of six months deserves to be waived keeping in view the fact that the marriage between the parties has broken beyond repair and there seems to be no possibility of parties living together. The Hon'ble Apex Court in Civil Appeal No.11158 of 2017 [arising out of Special Leave Petition (Civil) No.20184 of 2017] titled as Amardeep Singh vs. Harveen Kaur, decided on 12.09.2017, has held as under:-

"13. Learned amicus submitted that waiting period enshrined under Section 13(B)2 of the Act is directory and can be waived by the court where proceedings are pending, in exceptional situations. This view is supported by judgments of the Andhra Pradesh High Court in K. Omprakash vs. K. Nalini¹⁰, Karnataka High Court in Roopa Reddy vs. Prabhakar Reddy¹¹, Delhi High Court in Dhanjit Vadra vs. Smt. Beena^{2024:HHC:6672 Vadra}¹² and Madhya Pradesh High Court in Dinesh Kumar Shukla vs. Smt. Neeta¹³. Contrary view has been taken by Kerala High Court in M. Krishna Preetha vs. Dr. Jayan^{10 AIR 1986 AP 167 (DB) 11 AIR 1994 Kar 12 (DB) 12 AIR 1990 Del 146 13 AIR 2005 MP 106 (DB)} .

Moorkkanatt¹⁴. It was submitted that Section 13B(1) relates to jurisdiction of the Court and the petition is maintainable only if the parties are living separately for a period of one year or more and if they have not been able to live together and have agreed that the marriage be dissolved. Section 13B(2) is procedural. He submitted that the discretion to waive the period is a guided discretion by consideration of interest of justice where there is no chance of reconciliation and parties were already separated for a longer period or contesting proceedings for a period longer than the period mentioned in Section 13B(2). Thus, the Court should consider the questions:

- i) How long parties have been married?
- ii) How long litigation is pending?
- iii) How long they have been staying apart?
- iv) Are there any other proceedings between the parties?
- v) Have the parties attended mediation/ conciliation?
- vi) Have the parties arrived at genuine settlement which takes care of alimony, custody of child or any other pending issues between the parties?

14 AIR 2010 Ker 157

14. The Court must be satisfied that the parties were living separately for more than the statutory period and all efforts at mediation and reconciliation have been tried and have failed and there is no chance of reconciliation and further waiting period will only prolong their agony.

15. We have given due consideration to the issue involved. Under the traditional Hindu Law, as it stood prior to the statutory law on the point, marriage is a sacrament and cannot be dissolved by consent. The Act enabled the court to dissolve marriage on statutory grounds. By way of amendment in the year 1976, the concept of divorce by mutual consent was introduced. However, Section 13B(2) contains a bar to divorce being granted before six months of time elapsing after filing of the divorce petition by mutual consent. The said period was laid down to enable the 2024:HHC:6672 parties to have a rethink so that the court grants divorce by mutual consent only if there is no chance for reconciliation.

16. The object of the provision is to enable the parties to dissolve a .

marriage by consent if the marriage has irretrievably broken down and to enable them to rehabilitate them as per available options. The amendment was inspired by the thought that forcible perpetuation of status of matrimony between unwilling partners did not serve any purpose. The object of the cooling off the period was to safeguard against a hurried decision if there was otherwise possibility of differences being reconciled. The object was not to perpetuate a purposeless marriage or to prolong the agony of the parties when there was no chance of reconciliation. Though every effort has to be made to save a marriage, if there are no chances of reunion and there are chances of fresh rehabilitation, the Court should not be powerless in enabling the parties to have a better option.

17. In determining the question whether provision is mandatory or directory, language alone is not always decisive. The Court has to have the regard to the context, the subject matter and the object of the provision. This principle, as formulated in Justice G.P. Singh's "Principles of Statutory Interpretation" (9th Edn., 2004), has been cited with approval in Kailash versus Nanhku and ors.¹⁵as follows:

15 (2005) 4 SCC 480 "The study of numerous cases on this topic does not lead to formulation of any universal rule except this that language alone most often is not decisive, and regard must be had to the context, subject-matter and object of the statutory provision in question, in determining whether the same is mandatory or directory. In an oft-

quoted passage Lord Campbell said: 'No universal rule can be laid down as to whether mandatory enactments shall be considered directory only or obligatory with an implied nullification for disobedience. It is the duty of courts of justice to try to get at the real intention of the legislature by carefully attending to the whole scope of the statute to be considered.' "

'For ascertaining the real intention of the legislature', points out Subbarao, J. 'the court may consider inter alia, the nature and design of the statute, and the consequences which would follow from construing it the one way or the other; the impact of other provisions whereby the necessity of complying with the provisions in question is avoided; the circumstances, namely, that the statute provides for a contingency of 2024:HHC:6672 the non-compliance with the provisions; the fact that the non-compliance with the provisions is or is not visited by some penalty; the serious or the trivial consequences, that flow therefrom; and above all, whether the object of the legislation will be defeated or furthered'. If .

object of the enactment will be defeated by holding the same directory, it will be construed as mandatory, whereas if by holding it mandatory serious general inconvenience will be created to innocent persons without very much furthering the object of enactment, the same will be construed as directory." 18. Applying the above to the present situation, we are of the view that where the Court dealing with a matter is satisfied that a case is made out to waive the statutory period under Section 13B(2), it can do so after considering the following :

i) the statutory period of six months specified in Section 13B(2), in addition to the statutory period of one year under Section 13B(1) of separation of parties is already over before the first motion itself;

ii) all efforts for mediation/conciliation including efforts in terms of Order XXXIIA Rule 3 CPC/Section 23(2) of the Act/Section 9 of the Family Courts Act to reunite the parties have failed and there is no likelihood of success in that direction by any further efforts;

iii) the parties have genuinely settled their differences including alimony, custody of child or any other pending issues between the parties;

iv) the waiting period will only prolong their agony.

19. The waiver application can be filed one week after the first motion giving reasons for the prayer for waiver.

20. If the above conditions are satisfied, the waiver of the waiting period for the second motion will be in the discretion of the concerned Court.

21. Since we are of the view that the period mentioned in Section 13B(2) is not mandatory but directory, it will be open to the Court to exercise its discretion in the facts and circumstances of each case where there is no possibility of parties resuming cohabitation and there are chances of alternative rehabilitation."

8. It is quite apparent from the bare perusal of the aforesaid judgments passed by this Court (supra) and Hon'ble Apex Court that the very object of aforesaid provision is to enable the parties to dissolve a 2024:HHC:6672 marriage by consent, especially if marriage has broken irreparably and there is no possibility of rapprochement.

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9. It goes without saying that the Court below while passing decree of divorce by way of mutual consent would take note of the terms and conditions, as detailed hereinabove and would also ensure that before grant of decree of divorce, entire amount of alimony agreed to be paid by the petitioner, is paid to the respondent. In aforesaid terms, present petition is disposed of.

The parties are permitted to produce copy of order downloaded from the High Court website and the trial Court shall not insist for certified copy of the order, however, it may verify the order from the High Court website or otherwise.

August 08, 2024
(Rajeev Raturi)

(Sandeep Sharma),
Judge